

IN THE DISTRICT COURT OF

COUNTY, NEBRASKA

Choose the county

_____,
(name of plaintiff in original action) Plaintiff,

Case No. _____

vs.

**AFFIDAVIT AND
APPLICATION FOR ORDER
TO SHOW CAUSE
(Alimony/Property Settlement)**

_____,
(name of defendant in original action) Defendant.

I, _____, without the assistance of an attorney, ask
(your name)

this court for an order requiring _____ to
(name of person ordered to pay alimony or comply with property settlement)

show cause why he/she should not be held in contempt for failing to (check all
that apply):

☐ pay alimony ☐ comply with the property settlement as ordered.

In support of my application, I state that the following items are true:

1. On _____, an order was entered requiring
(date judge signed order)

_____ to (check all that apply):
(name of person ordered to pay alimony or comply with property settlement)

☐ pay alimony of _____ per month beginning _____.
(amount of monthly alimony ordered) (date alimony ordered to begin)

☐ comply with the property settlement terms. The other party has not followed
the order in the following ways:

2. The above order is still in effect.

3. Check all that apply:

☐ _____ is more than one
(name of person ordered to pay alimony)
month behind in the payment of alimony. As of _____,
(date alimony shortage computed)
_____ owes a total of _____ in alimony.
(name of person ordered to pay alimony) (amount of support owed)

☐ _____ has not complied
(name of person ordered to comply with a property settlement)
with the property settlement terms defined in the order.

4. _____'s failure to pay or
(name of person ordered to pay alimony or comply with property settlement)
comply as ordered is willful.

WHEREFORE, I request the court issue an order directing

_____ to appear before this
(name of person ordered to pay alimony or comply with property settlement)
court on a specific day and at a specific time to show cause why he/she should
not be held in contempt for failing to (check all that apply):

☐ pay alimony ☐ comply with the property settlement ordered by the court.

☐ I further request that _____ be ordered
(name of person ordered to pay alimony or comply with property settlement)
to pay the expenses of this action and for any further relief that may be just.

SIGN IN FRONT OF NOTARY PUBLIC

I hereby swear, or affirm, under penalty of perjury, that the above information is true.

Signature: _____ Date: _____

Printed Name: _____

Street Address/P.O. Box: _____

City/State/ZIP Code: _____

Telephone Number: _____

*Email address: _____

*[Nebraska Supreme Court Rule § 2-208](#) requires individuals who are not attorneys and representing themselves to provide their email address. The court will use the email address to send notices from the court about this case **except** for items that require another type of service as directed by statute or Nebraska Supreme Court Rule.

If you no longer have email capability or if your email or other contact information changes, you must complete a [Change of Contact Information Form](#).

☐ By checking this box, I am letting the court know that I do not have the ability to receive emails. The reason I cannot receive email is: _____

State of _____)
) ss.

County of _____)

This document was acknowledged before me by _____,

this _____ day of _____, 20_____.

_____. Notary commission expires: _____

Signature of Judge/Clerk of the Court/Notary Public

Title: _____ Serial Number (if any).: _____